

HOUSE No. 1276

The Commonwealth of Massachusetts

PRESENTED BY:

James J. O'Day and Michael P. Kushmerek

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act improving access to community behavioral health centers.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>James J. O'Day</i>	<i>14th Worcester</i>	<i>1/15/2025</i>
<i>Lisa Field</i>	<i>3rd Bristol</i>	<i>9/2/2025</i>

HOUSE No. 1276

By Representatives O'Day of West Boylston and Kushmerek of Fitchburg, a petition (accompanied by bill, House, No. 1276) of James J. O'Day relative to coverage for behavioral health bundled services. Financial Services.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act improving access to community behavioral health centers.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 32A of the general laws, as appearing in the 2022 official edition,
2 is hereby amended by inserting after section 30 the following new section:-

3 Section 31. (a) For the purposes of this section, the following words shall have the
4 following meanings:

5 “Behavioral health bundled services”, services delivered by a community behavioral
6 health center as specified in 101 CMR 305.00 for the evaluation, diagnosis, treatment, care
7 coordination, management, or peer support of patients with mental health, developmental or
8 substance use disorder, provided that services are reimbursed through a flat rate per encounter.

9 “Community Behavioral Health Centers”, a clinic licensed by the department of public
10 health and regulated pursuant to 130 CMR 448.00.

(b) Any health plan offered by the commission shall provide to an active or retired employee of the commonwealth who is insured under the group insurance commission benefits on a nondiscriminatory basis for medically necessary behavioral health bundled services delivered through community behavioral health centers.

SECTION 2. Chapter 175 of the general laws, as appearing in the 2022 official edition, is hereby amended by inserting after section 47PP the following new section:-

Section 47QQ. (a) For the purposes of this section, the following words shall have the following meanings:

“Behavioral health bundled services”, services delivered by a community behavioral health center as specified in 101 CMR 305.00 for the evaluation, diagnosis, treatment, care coordination, management, or peer support of patients with mental health, developmental or substance use disorder, provided that services are reimbursed through a flat rate per encounter.

“Community Behavioral Health Centers”, a clinic licensed by the department of public health and regulated pursuant to 130 CMR 448.00.

(b) Any individual policy of accident and sickness insurance issued pursuant to section 108, which provides hospital expense and surgical expense insurance, and a group blanket or general policy of accident and sickness insurance issued pursuant to section 110, which provides hospital expense and surgical expense insurance, which is issued or renewed within or without the commonwealth, shall provide benefits on a nondiscriminatory basis for medically necessary behavioral health bundled services delivered through community behavioral health centers.

SECTION 3. Chapter 176A of the general laws, as appearing in the 2022 official edition, is hereby amended by inserting after section 38 the following new section:-

Section 39. (a) For the purposes of this section, the following words shall have the following meanings:

“Behavioral health bundled services”, services delivered by a community behavioral health center as specified in title 101 CMR 305.00 for the evaluation, diagnosis, treatment, care coordination, management, or peer support of patients with mental health, developmental or substance use disorder, provided that services are reimbursed through a flat rate per encounter.

“Community Behavioral Health Centers”, a clinic licensed by the department of public health and regulated pursuant to 130 CMR 448.00.

(b) Any contract between a subscriber and the corporation under an individual or group hospital service plan which is issued or renewed within or without the commonwealth shall provide benefits on a nondiscriminatory basis for medically necessary behavioral health bundled services delivered through community behavioral health centers.

SECTION 4. Chapter 176B of the general laws, as appearing in the 2022 official edition, is hereby amended by inserting after section 25 the following new section:-

Section 26. (a) For the purposes of this section, the following words shall have the following meanings:

“Behavioral health bundled services”, services delivered by a community behavioral health center as specified in title 101 CMR 305.00 for the evaluation, diagnosis, treatment, care

coordination, management, or peer support of patients with mental health, developmental or substance use disorder, provided that services are reimbursed through a flat rate per encounter.

“Community Behavioral Health Centers”, a clinic licensed by the department of public health and regulated pursuant to 130 CMR 448.00.

(b) Any subscription certificate under an individual or group medical service agreement which is issued or renewed within or without the commonwealth shall provide benefits on a nondiscriminatory basis for medically necessary behavioral health bundled services delivered through community behavioral health centers.

SECTION 5. Chapter 176G of the general laws, as appearing in the 2022 official edition, is hereby amended by inserting after section 33 the following new section:-

Section 34. (a) For the purposes of this section, the following words shall have the following meanings:

“Behavioral health bundled services”, services delivered by a community behavioral health center as specified in 101 CMR 305.00 for the evaluation, diagnosis, treatment, care coordination, management, or peer support of patients with mental health, developmental or substance use disorder, provided that services are reimbursed through a flat rate per encounter.

“Community Behavioral Health Centers”, a clinic licensed by the department of public health and regulated pursuant to title 130 CMR 448.00.

(b) Any health maintenance contract issued or renewed within or without the commonwealth shall provide benefits on a nondiscriminatory basis for medically necessary behavioral health bundled services delivered through community behavioral health centers.